Draft for University Legal Office review

This version is not yet effective. It is published for review by the University Legal Office. The proposed effective date is October 27, 2026.

LEGAL

Terms of Service

The rules for using the PakaonAI research prototype.

VERSION	STATUS	APPLIES TO
1.0	Draft — pending University Legal Office review	PakaonAI app release 1.11.0

LAST UPDATED	PROPOSED EFFECTIVE DATE	REVIEWED BY
October 26, 2026	October 27, 2026	Pending University Legal Office review

Acceptance

These Terms of Service govern your access to and use of the PakaonAI website, dashboard, progressive web app, AI assistant, and ESP32 feeder service (together, the “Service”). By signing in, accessing, or using the Service, you agree to these Terms and to our Privacy Policy. If you do not agree, do not use the Service.

Research prototype

PakaonAI is a capstone research prototype, not a commercial, life-safety, or regulated aquaculture control system. It is provided on an “as is” and “as available” basis. The ESP32 real-time clock schedule, the physical feed button, and your own supervision remain the fallback for feeding.

The service

PakaonAI helps farm operators record biomass samples, calculate feed amounts, monitor feeding and device telemetry, track FCR and growth, plan harvests, and review feeding history. It may include an AI assistant and feeding recommendation. The Service is offered for the capstone evaluation and pilot use described in the project materials.

We may add, change, suspend, or remove features to improve the Service, address security, or comply with law. We will try to give reasonable notice of material changes that affect how you use the Service.

Accounts and security

- Accounts are issued by a farm administrator or the PakaonAI team. You must provide accurate information and keep it up to date.
- Keep your password confidential. Do not share your account or let another person use your session. Notify your administrator or the DPO immediately if you suspect unauthorized access.
- You are responsible for activity under your account, to the extent allowed by law.
- We may suspend or revoke access for security, abuse, legal reasons, or a violation of these Terms.

Acceptable use

You agree not to:

- access another farm, account, or tenant without authorization;
- probe, scan, bypass, or defeat authentication, rate limits, or access controls;
- scrape, harvest, or bulk-extract data except through the export features we provide;
- reverse engineer, decompile, or attempt to derive source code except as allowed by law;
- upload malware, malicious code, or content that infringes another person's rights;
- enter sensitive personal information, another person's data without authority, or unlawful content;
- interfere with the ESP32, the feeder, the pond, or another user's device;
- use the Service to harm animals, people, property, or the environment; or
- use the Service for an illegal purpose or in violation of Philippine law.

Farm data and ownership

As between you and PakaonAI, the farm or farmer that controls the pond owns its farm operational data. You grant PakaonAI a limited, non-exclusive, revocable license to host, process, transmit, back up, and display that data only to provide the Service, secure it, and follow your instructions.

You are responsible for having the authority to enter data about your farm, your workers, and your devices. Do not upload another person's personal data without their consent or another lawful basis.

We may use aggregated or de-identified statistics for research, evaluation, and service improvement. Research use of identifiable data requires consent, as described in the Privacy Policy. We do not sell farm data.

If you are a farm tenant, your farm administrator controls membership and access. A farm may request a written data processing agreement for its pilot deployment.

AI advice and feeding safety

Do not rely on the app alone

Feeding decisions affect animal health, water quality, cost, and yield. The farmer and farm staff remain responsible for the pond, the fish, the feed, the device, the power supply, the hopper, and the schedule. Check the physical feeder and the pond. The ESP32 RTC and the physical button must remain available as the offline fallback.

- AI recommendations are estimates and advisory only. They are not veterinary, nutritional, legal, financial, or engineering advice.
- Verify a recommendation with a fresh biomass sample, your records, and your own observation before you apply it.
- We do not guarantee a specific feed amount, growth rate, FCR, survival rate, harvest weight, income, or water-quality outcome.
- Do not enter sensitive personal information or credentials in the AI chat. If you do, we may remove it.

- If the device is offline, the app cannot send commands. Scheduled feeding depends on the device's RTC and local cache.

Availability and changes

The Service is provided as available. We do not promise uninterrupted, error-free, or secure operation, a service-level agreement, or a specific uptime. Maintenance, network failures, third-party outages, device faults, and power interruptions may affect availability.

We may change, suspend, or discontinue all or part of the Service. Where practicable, we will give notice and a reasonable opportunity to export farm data before a discontinuation.

Intellectual property

The Service, its software, design, documentation, branding, and research materials are owned by the PakaonAI project team, ISUFST, or their licensors. These Terms do not transfer ownership to you.

You retain ownership of your farm data. You may export it using the features we provide. Open-source components remain under their respective licenses. If you send us feedback or suggestions, you allow us to use them to improve the Service without a fee.

Third-party services

The Service relies on third-party providers, including Supabase, Vercel, OpenCodeGo, Resend, and Google Forms/Drive. Their terms and privacy notices apply to their processing. We are not responsible for a third party's independent acts or omissions, but we choose providers with appropriate safeguards and remain accountable for personal data we control.

The Service may link to third-party websites. We do not control their content or privacy practices.

Disclaimers

To the maximum extent permitted by Philippine law, the Service is provided without warranties of any kind, express or implied, including merchantability, fitness for a particular purpose, non-infringement, accuracy, and uninterrupted availability.

We do not warrant that the Service will meet your requirements, that data will be accurate or complete, that defects will be corrected, or that the Service will be free of viruses or other harmful components. You are responsible for maintaining backups of critical farm records.

Nothing in these Terms excludes or limits a warranty or right that cannot be excluded or limited under Philippine law, including consumer rights and liability for gross negligence, fraud, or willful misconduct.

Limitation of liability

To the maximum extent permitted by law, PakaonAI, its project team, ISUFST, and their advisers will not be liable for indirect, incidental, special, consequential, exemplary, or punitive damages, or for loss of profit, revenue, harvest, fish, feed, data, goodwill, or business opportunity, arising from or related to the Service.

Because the pilot is provided free of charge, our aggregate liability for direct damages is limited to the amount you paid us for the Service in the 12 months before the claim, or PHP 1,000 if you paid nothing, whichever is lower. This cap does not apply to liability that cannot be limited by law.

The parties will try to resolve a dispute in good faith before filing a claim. This section does not limit your rights under the Data Privacy Act or the National Privacy Commission.

Indemnity

To the extent allowed by law, you agree to indemnify and hold harmless PakaonAI, its project team, ISUFST, and their advisers from claims, losses, liabilities, and reasonable costs arising from your misuse of the Service, your violation of these Terms, your violation of another person's rights, or data you entered without authority. This does not apply to our own negligence or willful misconduct.

Termination

You may stop using the Service at any time. A farm administrator may remove your account. We may suspend or terminate access for a violation of these Terms, a security risk, a legal requirement, or discontinuation of the pilot.

On termination, you may request an export of your farm data within a reasonable period. We will delete or anonymize data according to the Privacy Policy and any legal retention obligation. Provisions that by their nature should survive termination (including ownership, disclaimers, liability, and governing law) will survive.

Governing law and venue

These Terms are governed by the laws of the Republic of the Philippines. Subject to the dispute-resolution paragraph above, the courts of Iloilo City have exclusive jurisdiction over disputes arising from these Terms, unless a mandatory law provides otherwise.

Nothing in these Terms prevents you from exercising your rights under the Data Privacy Act or filing a complaint with the National Privacy Commission.

Changes to these terms

We may update these Terms when the Service, the law, or our practices change. The version number and last-updated date will change, and we will keep a version history below. For material changes, we will post a notice on the website and, where appropriate, notify the farm administrator before the change takes effect. Continued use after the effective date means you accept the updated Terms.

This version is a draft for University Legal Office review and is not effective until the review is complete.

Contact

For questions about these Terms, contact the designated Data Protection Officer, **Jeff Edrick C. Martinez**, at privacy@pakaonai.syntaxure.dev.

For farm access or account issues, contact your farm administrator first. For privacy requests, see the Privacy Policy.

Version history

VERSION	DATE	CHANGE
1.0	Proposed: 2026-10-27	Initial Privacy Policy and Terms of Service. Draft for University Lega Office review.

Current version: 1.0. This is a draft for University Legal Office review.

Jeff Edrick C. Martinez · Data Protection Officer

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National Privacy Commission: https://privacy.gov.ph · Complaints